11) Taxes:

11.1) In order to claim the credit/set off of Excise duty, Service tax, MVAT and applicable Education Cess or any other tax, duty or Cess, the Supplier has to provide appropriate invoice /document prescribed under the relevant Central / State Government and local authority legislation. Supplier should also submit other statutory documents as applicable from time to time to be furnished to the DeCon India Plastics Private Limited - Finance & Accounting Department for taking credit.

11.2) The Supplier undertakes to provide to DeCon India Plastics Private Limited the order of Indian Income Tax Authority under section 195 of the Income Tax Act, 1961 of India for determination of the appropriate withholding tax before DeCon India Plastics Private Limited makes the remittance to Supplier. The remittance will be effected after Supplier provides the said order to the Direct Tax team of DeCon India Plastics Private Limited. No interest will be payable by DeCon India Plastics Private Limited to Supplier for delay in remittance on this account.

11.3) T.D.S (tax deduction at source) for "services" provided will be deducted as applicable according to the Indian Taxation Laws and Regulations. Accordingly the T.D.S Certificate will be issued by DIPPL (DECON INDIA PLASTICS PVT. LTD.) Finance department.

11.4) DeCon India Plastics Private Limited would deduct the amount with respect to taxes and other contributions from the payment due and payable to Supplier as applicable under any Central / State Government and local authority in the manner and time and at the rates applicable from time to time, unless Supplier submits a specific certificate for nondeduction or lower deduction of taxes/contribution, under the applicable legislation.

11.5) If Supplier has not submitted the proper invoice for availing any tax credit and the DeCon India Plastics Private Limited is not able to avail the Tax credit, then DeCon India Plastics Private Limited shall effect the payment to the Supplier after deducting the equivalent amount of the Tax credit so lost.

11.6) Any new tax (whether direct or indirect) imposed by any State or Central Government in India in connection with the arrangement with Supplier shall be the sole liability of Supplier and in case such taxes are paid by DeCon India Plastics Private Limited to the Government, they would be immediately reimbursed by Supplier.

11.7) The Supplier shall be solely responsible and liable for his wrong assumptions/omissions/consideration of all applicable taxes, duties and levies in the Contract price including on account of noncompliance with any statutory procedure for claiming the tax exemption, concession if any. In addition to above, taxes, duties and levies, if any, which are prevailing on the date of signing of the Contract, but not considered by the Supplier in the Contract price, shall be borne and paid by the Supplier.

11.8) The Supplier shall bear and pay all taxes, duties, charges or levies which may be assessed, imposed or levied upon the Supply/ Works outside India or any receipt realized by him outside India in connection with and in the execution of the Contract by any country or governmental agency thereof in which the goods/ Works are carried out as per this Purchase Order & agreement.

11.9) Further, it would be the obligation of Supplier to immediately inform DeCon India Plastics Private Limited on account of any subsequent order(s) passed by the tax authorities amending the withholding tax order referred above. In case there is a delay or default on part of Supplier to inform DeCon India Plastics Private Limited of such amendment(s) to the withholding tax order, then Supplier will immediately reimburse DeCon India Plastics Private Limited for the tax/ interest / penalty / litigation costs (including fees of advisors) or any other costs borne by DeCon India Plastics Private Limited (including any interest, penalties or income-tax impact on account of any remittance amount) and that Supplier would not wait for the order of the appellate authorities to reimburse the tax/ interest / penal / other aforesaid costs. DeCon India Plastics Private Limited would refund the interest and penalty to Supplier in case there is a favorable order from the appellate authorities.

12) Arbitration clause and Court jurisdiction:

In the event of any dispute arising in respect of this Purchase Order, our representatives shall attempt to resolve such dispute within fifteen days of either of us giving notice to the other party of such dispute. All disputes arising out of or in connection with this Purchase Order, which cannot be resolved amicably as mentioned above, shall be finally settled exclusively by arbitration as per the Arbitration and Conciliation Act, 1996. The arbitration tribunal shall comprise of three arbitrators, one each to be appointed by either party or the third arbitrator shall be jointly appointed by the two arbitrators so appointed. The venue of arbitration shall be Mumbai (Maharashtra). Each Party shall pay its own costs and expenses incurred in connection with the arbitration proceedings.

This Purchase Order is based on the general terms and conditions of DIPPL (DeCon India Plastics Pvt. Ltd.)
If Supplier have commercial questions don't hesitate to contact your Purchase Buyer.

DeCon India Plastics Private Limited.

DECON INDIA PLASTICS PVT. LTD.

RAVIKANT	Finanace		Materials	
Prepared By	Verified By	Verified By	Verified By	**Authorised Signatory**